



U.S. Department
of Transportation

Research and
Special Programs
Administration

JUL 14 1998

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 12076

EXPIRATION DATE: September 30, 1999

(FOR RENEWAL, SEE 49 CFR SECTION 107.109)

1. GRANTEE: Valvoline Company
Lexington, KY
2. PURPOSE AND LIMITATION: This exemption authorizes the transportation in commerce of an inventory of packages marked Engine starting fluids, UN 1960 in lieu of Aerosols, UN1950 as required after October 1, 1998. This exemption provides no relief from any regulation other than as specifically stated herein.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR Part 172.301(a) in that as of October 1, 1998, the proper shipping name and UN identification number marked on the packages is not consistent with the Hazardous Materials Table, 49 CFR 172.101.
5. BASIS: This exemption is based on the application of Valvoline Company dated March 23, 1998, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon.
6. HAZARDOUS MATERIALS (49 CFR 172.101):

Hazardous materials description -- proper shipping name	Hazard Class/ Division	Identi- fication Number	Packing Group
Engine Starting Fluids	2.1	UN1960	None

JUL 14

Continuation DOT-E 12076

Page 2

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging must be in compliance with 49 CFR Part 173 as required for the material being shipped.

b. OPERATIONAL CONTROLS - Packages filled with the hazardous material authorized by this exemption must be marked Aerosols, UN1950 after October 1, 1998.

8. SPECIAL PROVISIONS: None as a requirement of this exemption.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.

10. MODAL REQUIREMENTS: None as a requirement of this exemption.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. Section 5101 et seq:

- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.

- o Registration required by 49 CFR 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in 49 CFR 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by 49 CFR 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (49 CFR 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incidents involving the package and shipments made under the terms of this exemption.

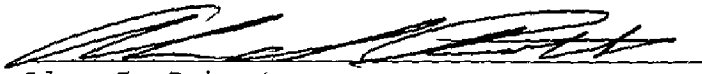
JUL 14 1981

Continuation DOT-E 12076

Page 3

Issued at Washington, D.C.:

JUL 14 1981



Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

(DATE)

Address all inquiries to: Associate Administrator for Hazardous
Materials Safety, Research and Special Programs Administration,
Department of Transportation, Washington, D.C. 20590.
Attention: DHM-31.

The original of this exemption is on file at the above office.
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